

**BEFORE THE MAHARASHTRA
REAL ESTATE REGULATORY AUTHORITY, MUMBAI**

Virtual Hearing held through video conference as per
MahaRERA Circular No.: 27/2020

COMPLAINT NO. CC006000000192985
OM PRAKASH SINGH ...COMPLAINANT

A/W
COMPLAINT NO. CC006000000193001
VIJAI LAXMI SINGH ...COMPLAINANT

VS
JVPD PROPERTIES PVT LTD ...RESPONDENT

MAHARERA PROJECT REGISTRATION NO. P51800011181

Rectification Order
June 08, 2022
(Final Order – 10.01.2021)
(Date of hearing – 08.06.2022)

Coram: Shri. Ajoy Mehta, Chairperson, MahaRERA
Advocate Pooja Gaikwad for the Complainants
None for the Respondent

1. The Complainants have sought rectification in the final order dated 10.01.2021 ("**said order**") passed by this Authority in the captioned complaint on account of an inadvertent error in the date of the said order.
2. On perusal of the said order, it is observed that the date of the order was inadvertently written as "10.01.2021" instead of "**10.01.2022**".
3. In light of the aforesaid inadvertence, the date of the said order is hereby rectified to **10.01.2022** and this rectification order be read with the said order.

4. Thus, except the above rectification, the said order shall remain valid and subsisting and this rectification order shall be read along with the said order henceforth.


(Ajay Mehta)
Chairperson, MahaRERA

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COMPLAINT NO: CC006000000193001

VIJAI LAXMI SINGH

...Complainant

Vs

JVPD Properties Pvt. Ltd.

...Respondents

MahaRERA Project Registration No. P51800011181

Order

January 10, 2021

(Date of Hearing: 5th October, 2021: Matter Reserved for Order)

Coram: Shri. Ajoy Mehta, Chairperson, MahaRERA

Complainants present

Advocate A K Singh present for Respondent

1. The Complainants are holders of allotment letters in the project of the Respondent. The Respondents have registered their project "Bhagtani Serenity" under section 5 of the Real Estate (Regulation and Development) Act, 2016 ("RERA") bearing MAHARERA Registration No. P51800011181 (hereinafter referred to as the "said Project").

2. The Complainants seeks the following relief:

COMPLAINT NO. (Date of Filing)	RELIEF AS CLAIMED (In Brief)
CC006000000192985 (13/03/2020)	Refund of payment made by the Allottees along with interest.
CC006000000193001 (13/03/2020)	

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3. The following roznama as passed by this Authority on 5th October, 2021:

" The Complainants state that for the complaints listed the Letter of Allotment was given from the year 2013 to 2015 for flats whose total consideration was between Rs 40 to 90 lakh against which the Complainants had paid sums varying from Rs.5 lakhs to Rs.34 lakhs. The date of possession was given to be between 42 months to 48 months from the date of final CC. Till date no CC is issued. The Complainants states that the project was registered on the basis on IOD which has now expired the Complainant also states that Form B filed in 2017 by the Respondent showed it to be free from encumbrance however now they realise that the property has been put to auction. The Complainants contend that on 24th July, 2014, the Respondent conveyed its inability to execute the project in view of various regulatory and other issues. The Complainant also contends that having received more than 20% of the consideration amount the Respondent was bound to enter into an Agreement of Sale.

The Complainants in these complaints represented by the Adv. Avinash Pawar continuing with the arguments earlier made by the other Complainants states that a number of orders have been passed in relation to this project wherein claims of various buyers and creditors have been recorded and in the process of recovery and the same would be recovered. The Complainants also seek that their monies be refunded. The Complainants also contend that the Respondent himself admitted in 2017 that he cannot go ahead with the project. The Complainant also suggests that only the Association of the Allottees could possibly see the project through.

Appeared In-person and requested to record the same arguments as other Complainants. The Respondent contends that the Complainant is Premature as the date of completion on RERA website is 30th July, 2025. His contention is that bookings were made in the pre-launch stage at concessional rates. The provisional Allotment Letter very clearly mentioned the risks involved in the project and all signatories were aware of the same. The Allotment Letter stated that they would attempt to complete in 42 months on a best effort basis. The Respondent also contends that the provisional Allotment Letter gave the Allottees right to terminate in a certain period of time. The Respondent also contends that in view of earlier RERA orders the property now stands attached. The Respondent also contends that the only document that is exchanged is a provisional Allotment Letter and that there is no concluded contract. The Respondent also contends that unless the allottees terminate they cannot approach RERA for any relief.

All parties are at liberty to file Written Submission if any by 18th of October, 2021. Subsequent to which the matter will be Reserved for Order. "

4. The brief facts of the captioned Complaints are as follows:

Sr. No	Complaint No.	Flat No/ Area	Total Consideration	Allotment letter date	Possession date.
1.	CC006000000192985	2701 & 2702 / 27th Floor in D wing, 737 sq.ft	Rs.1,21,50,000/- (Paid Rs. 37,80,156/- including	14/05/2014	42 months from the receipt of the final Commencement

			Service Tax)		Certificate (CC) from the plinth level.
2.	CC006000000193001	2703 / 27th Floor in A2 wing, 780 sq.ft	Rs.1,25,75,000/- (Paid Rs. 39,12,384/- including Service Tax)	08/05/2015	42 months from the receipt of the final Commencement Certificate (CC) from the plinth level.

5. The Complainants submits that the complaint application was filed on 20th April, 2018, against the Respondents in Economic offence wing (EOW), Mumbai, by both the Complainants.
6. The Respondent stated that the Complainants are the investors and they are not the Allottees as in the provisional Allotment letters they have admitted that they are investors. The Respondent further states that the Complainants are just the investors and the same is admitted by them in the Allotment Letter. The Respondent states that the Project property has already been attached under the SARFAESI Act, 2002.
7. Further, as per the MahaRERA Project registration web page the proposed date of completion of the said Project is 30th July, 2025 and the revised proposed date of completion is 30th July, 2026.
8. Thus, in the present complaints following observations are noteworthy:
 - a. It is observed that all the Complainants relied upon the Letter of Allotment issued to them by the Respondent in the year 2014 and 2015, respectively. This fact is not disputed by the Parties herein.
 - b. It is pertinent to note that both the Letter of Allotment are issued by the Respondent in the year 2014 and 2015 which is prior to commencement of RERA. Thus, the Parties herein shall abide by the terms mentioned therein.

- c. It is observed that the period of the possession promised by the Respondent and the amount paid is mentioned in the Complaint Application filed by the Complainant in EOW and the documents supporting this fact are not annexed/submitted by the Complainants.
- d. The Complainants herein fail to bring anything on record to show that they have exercised their rights to terminate. Thus at this stage having not exercised their rights to terminate the Allotment Letter, this then becomes a binding and continuing agreement. As is seen while this Allotment letter is subsisting the project comes to be registered in RERA and a date of completion namely 30th July, 2025 is given.
- e. Thus while the Allotment Letter predates RERA a milestone has occurred in the intervening period namely the option of terminating the Allotment Letter. The Allottees have not exercised this option. Having not exercised this option would mean renewing their involvement with the project. Thus having renewed their option of continuing with the project they would then be bound by subsequent events, namely the advent of RERA and the dates committed therein. The irony of the situation is that there is no Agreement to sale that has been executed. In the absence of an Agreement to Sale even though the completion date is 30th July, 2025, as per the RERA website, the conditions of the Allotment Letter shall bind the parties.
- f. Further the Authority has no Jurisdiction to interfere with the terms of the Letter of Allotment issued to the Complainants herein by the Respondent. Since the Letter of Allotment were issued prior to RERA. Thus, the Complainants seeking refund/withdrawal from the said Project shall be governed by the individual Letter of Allotments entered between the Parties.

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- g. From the aforesaid observations it is clear that the Complainants are entitled to claim refund as per the terms mentioned in their respective Letter of Allotment.
9. Thus, in view of the above observations the complaints are disposed off. Further, this Authority has no Jurisdiction to interfere with the terms of the individual Letter of Allotments issued to all the Complainants herein by the Respondent. Needless to say, the Parties shall abide by the terms and condition of the Letter of Allotment executed between them.
10. No order as to Cost.


(Ajoy Mehta)
Chairperson, MahaRERA